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|   |                                              | <p>judgment. The judgment should be posted for at least 180 days.</p> <p><u>As to the proposed order (ROA 43):</u></p> <p>20. The proposed order should be revised consistent with the above.</p> <p>21. In the first paragraph of the proposed order, the words "and PAGA" should be added after "Class" and before "Action."</p> <p>22. The second sentence in the first paragraph should be revised to state: "The court finds the settlement to be fair, adequate and reasonable, and in the best interests of the class members."</p> <p>23. The final approval hearing date in paragraph 15 should be corrected. In addition, the parties should propose a date for the final approval hearing and include it in paragraphs 15 and 19. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing.</p> <p>24. Paragraph 18 should be removed.</p> <p>25. The settlement agreement and any amendment(s) thereto and the class notice packet (in English, Spanish and any other languages) should be attached to the proposed order as exhibits.</p> <p>The hearing on plaintiff's motion for preliminary approval is continued to <u>August 21, 2025 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. See <i>also</i> Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (<a href="http://www.occourts.org">www.occourts.org</a>). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order).</p> <p>Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service.</p> |
| 2 | Benyard v. Navien, Inc.<br><br>2024-01429015 | <p><u>Defendant Navien, Inc.'s Motion to Compel Arbitration</u></p> <p>Defendant Navien, Inc. moves for an order compelling arbitration of plaintiff Ian Benyard's individual claims and striking Benyard's class claims. Benyard filed a statement of</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|   |                                                                                | <p>non-opposition. ROA 46. Defendant's motion is therefore granted.</p> <p>Benyard's class claims are dismissed without prejudice. The superior court action is stayed pending completion of the arbitration. The initial case management conference scheduled for April 17, 2025 is vacated. An ADR Review hearing is scheduled for <u>November 6, 2025 at 9:00 a.m.</u> in Department CX104. The parties are ordered to file a joint status conference report at least five court days before the hearing.</p> <p>Defendant Navien, Inc. to give notice.</p> <p><u>Initial Case Management Conference</u></p> <p>The court has reviewed the parties' joint status conference statement filed April 10, 2024 (ROA 48). In light of the court's concurrent ruling on defendant Navien, Inc.'s motion to compel arbitration, the initial case management conference scheduled for April 17, 2025 at 2:00 p.m. in Department CX104 is vacated.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 3 | <p>Boone v. Sedgwick Claims Management Services, Inc.</p> <p>2022-01268269</p> | <p><u>Plaintiff's Motion for Approval of PAGA Settlement</u></p> <p>The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$45,000 PAGA settlement. The court has the following comment:</p> <ol style="list-style-type: none"> <li>1. In its November 22, 2024 order (ROA 176), the court stated that the notice should be revised to state the deadline for checks to be mailed. 11/22/24 Order (ROA 176) ¶ 2. The Third Amendment to the PAGA Settlement Agreement (Fourth Supp. Carney Decl. (ROA 182) Ex. 2) states in paragraph 4.4 that the settlement administrator will issue the Individual PAGA Payments "three weeks after the Proposed Notice is mailed," but it states in paragraph 4.4.1 that "the Individual PAGA Payments will be issued on the 50th day after the original notice mailing." The notice states (at p. 2) that the checks "will be mailed no later than fifty (50) days after the date this initial letter is mailed." If the parties intend that the settlement administrator will mail the checks no later than 50 days after the administrator mails the initial letter, paragraph 4.4 of the Third Amendment should be revised (and paragraph 4.4.1 should be revised to state "no later than fifty (50) days" rather than "on the 50th day"). If the parties intend that the settlement administrator will mail the checks three weeks after the administrator mails the initial letter, paragraph 4.4.1 of the Third Amendment and the notice letter should be revised.</li> </ol> <p>The hearing on plaintiff's motion for approval is continued to <u>August 21, 2025 at 2:00 p.m.</u> in Department CX104 to permit</p> |